

SENATE BILL 2401

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 37,
relative to the department of children's services.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by
adding the following new section:

(a) On or by January 1, 2027, the department must release the following
information to the public:

(1) A list of all providers, inside and outside of this state, with whom the
department has contracted in the previous three (3) fiscal years to house or
supervise children and youth in state custody, excluding individual foster parents;

(2) The number of youth served by each provider;

(3) What agency or entity licenses or approves each provider;

(4) Whether each provider serves delinquent, dependent, or unruly
youth;

(5) The scope of services and corresponding amount of money the
department has paid to each provider, broken out by state and federal funding
source; and

(6) The number of licensing violations, including a brief description of the
basis of the violation, enforcement actions, reported incidents, and abuse
investigations for each provider.

(b) On January 30, 2027, and the thirtieth day of each month thereafter, the
department must publish the following on its website:

(1) The number of children in the department's custody that have stayed at least one (1) night in a short-term or interim location that is unable to serve as a permanent placement, such as hotels, offices, shelters, transitional housing, respite, juvenile detention centers, hospitals, assessment centers, and any other place where children are housed while awaiting placement or transitioning between placements by the department;

(2) Information regarding the number and length of utilization of short-term or interim locations by type of location, age, region, and adjudication status. Data regarding the length of utilization must include, at a minimum, the average length of stay, total number of nights utilized, the longest stay during the reported time period, and the number of stays exceeding benchmarks under relevant statute, regulation, or policy; and

(3) Information regarding the amount of overtime staff worked to supervise children in short-term or interim locations.

(c) The department must consult with the comptroller of the treasury to develop measures for accurate and meaningful reporting of the data required by this section.

(d) The department must include a yearly summary of the information published pursuant to subsection (b) in its annual report.

(e) On a semi-annual basis, the department must publish a list of the locations utilized as short-term or interim placements, as well as a list of contractors utilized for the operation of these locations, including contracts or memorandums of understanding for use of space, supervision of children, and security.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.